

NDPA 2023 Compliance Report

Nigeria Data Protection Act 2023 - Automated Compliance Analysis
Generated: 27 July 2026 at 03:31 UTC

Summary

Document	non_compliant_srs.txt
Overall Score	24.0%
Verdict	NON-COMPLIANT
Total Rules Checked	25
Compliant	6
Non-Compliant	11
Not Addressed	8
Date Checked	27 July 2026

Detailed Findings

#1	Section 24(1)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller shall ensure that personal data is collected only for specified, explicit and legitimate purposes and not further processed in a manner incompatible with those purposes.		
Match:	Data is shared with marketing companies without user consent.		
Action:	Ensure this requirement is explicitly addressed in your software design and documented in your privacy policy.		
#2	Section 24(2)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller shall obtain the consent of the data subject before collecting or processing personal data.		
Match:	Data is shared with marketing companies without user consent.		
Action:	Implement a clear consent mechanism such as a checkbox or popup that explicitly asks users for permission before collecting or processing their personal data.		
#3	Section 24(3)	OBLIGATION	NON-COMPLIANT
Rule:	Personal data shall be adequate, relevant and limited to what is necessary in relation to the purposes for which it is processed.		
Match:	Data is shared with marketing companies without user consent.		
Action:	Ensure this requirement is explicitly addressed in your software design and documented in your privacy policy.		
#4	Section 25(1)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller shall ensure that personal data is accurate and where necessary kept up to date.		
Match:	Users cannot correct or update their personal data.		
Action:	Ensure this requirement is explicitly addressed in your software design and documented in your privacy policy.		
#5	Section 26(1)	PROHIBITION	COMPLIANT

Rule:	Personal data shall not be kept in a form which permits identification of data subjects for longer than is necessary for the purposes for which the personal data is processed.		
Match:	Data is kept indefinitely with no deletion policy.		
Action:	No action required. This requirement is satisfied.		
#6	Section 27(1)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller shall implement appropriate technical and organisational measures to ensure the security of personal data.		
Match:	DATA SHARING: User data is sold to third-party advertisers for profit.		
Action:	Implement appropriate security measures including firewalls, access controls, and data protection protocols.		
#7	Section 27(2)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller must ensure that personal data is protected against unauthorised or unlawful processing and against accidental loss, destruction or damage.		
Match:	DATA SHARING: User data is sold to third-party advertisers for profit.		
Action:	Ensure every data processing activity has a documented lawful basis as required by the NDPA 2023.		
#8	Section 27(3)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller shall use encryption to protect personal data stored in electronic form.		
Match:	No encryption is used for stored personal data.		
Action:	Apply encryption such as AES-256 for stored data and ensure all data in transit is protected using HTTPS or TLS.		
#9	Section 28(1)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller shall notify the Commission and affected data subjects of a personal data breach within 72 hours of becoming aware of the breach.		
Match:	The system does not notify users or regulators in the event of a breach.		
Action:	Establish a data breach response plan that includes notifying the Nigeria Data Protection Commission and affected users within 72 hours of a breach.		
#10	Section 29(1)	OBLIGATION	NON-COMPLIANT
Rule:	A data subject shall have the right to request access to their personal data held by a data controller.		
Match:	USER RIGHTS: Users cannot request access to their personal data.		
Action:	Provide users with a mechanism to request access to their personal data, such as a profile settings page or data request form.		
#11	Section 29(2)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller must provide a means by which data subjects can request correction of inaccurate personal data.		
Match:	Users cannot correct or update their personal data.		
Action:	Provide users with the ability to update or correct their personal data through their account settings.		
#12	Section 29(3)	OBLIGATION	NON-COMPLIANT
Rule:	A data subject shall have the right to request the deletion of their personal data and the data controller must comply where the data is no longer necessary.		
Match:	Data is kept indefinitely with no deletion policy.		
Action:	Implement a data deletion feature that allows users to permanently delete their account and associated personal data.		
#13	Section 30(1)	PROHIBITION	COMPLIANT

Rule:	Personal data shall not be transferred to a foreign country unless that country provides an adequate level of data protection.		
Match:	No encryption is used for stored personal data.		
Action:	No action required. This requirement is satisfied.		
#14	Section 30(2)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller must ensure that appropriate safeguards are in place before transferring personal data to a third party organisation.		
Match:	DATA SHARING: User data is sold to third-party advertisers for profit.		
Action:	Ensure that any international data transfers include adequate safeguards such as data transfer agreements or storing data on Nigerian servers.		
#15	Section 31(1)	PROHIBITION	COMPLIANT
Rule:	A data controller shall not sell personal data of data subjects to third parties without explicit consent.		
Match:	Data is shared with marketing companies without user consent.		
Action:	No action required. This requirement is satisfied.		
#16	Section 32(1)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller shall provide clear and transparent information to data subjects about how their personal data is collected and used.		
Match:	DATA SHARING: User data is sold to third-party advertisers for profit.		
Action:	Ensure this requirement is explicitly addressed in your software design and documented in your privacy policy.		
#17	Section 32(2)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller must publish a privacy policy that clearly explains the purpose of data collection and the rights of data subjects.		
Match:	Data is shared with marketing companies without user consent.		
Action:	Publish a clear and accessible privacy policy that explains what data is collected, how it is used, and the rights of users.		
#18	Section 33(1)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller shall appoint a Data Protection Officer where the organisation processes large volumes of personal data.		
Match:	DATA SHARING: User data is sold to third-party advertisers for profit.		
Action:	Appoint a Data Protection Officer (DPO) responsible for overseeing compliance with the NDPA 2023.		
#19	Section 34(1)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller shall conduct a Data Protection Impact Assessment before processing personal data that is likely to result in high risk to data subjects.		
Match:	DATA SHARING: User data is sold to third-party advertisers for profit.		
Action:	Conduct a Data Protection Impact Assessment (DPIA) before processing any high-risk personal data.		
#20	Section 35(1)	PROHIBITION	COMPLIANT
Rule:	Personal data relating to children shall not be processed without the consent of a parent or legal guardian.		
Match:	No encryption is used for stored personal data.		
Action:	No action required. This requirement is satisfied.		
#21	Section 36(1)	OBLIGATION	COMPLIANT

Rule:	A data controller shall implement access controls to ensure that personal data is only accessible to authorised personnel.		
Match:	Anyone with database credentials can access all user data.		
Action:	No action required. This requirement is satisfied.		
#22	Section 36(2)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller must maintain logs of all access to personal data to enable auditing and accountability.		
Match:	Anyone with database credentials can access all user data.		
Action:	Provide users with a mechanism to request access to their personal data, such as a profile settings page or data request form.		
#23	Section 37(1)	PROHIBITION	COMPLIANT
Rule:	A data controller shall not process sensitive personal data including health data, biometric data and financial data without explicit consent.		
Match:	Data is shared with marketing companies without user consent.		
Action:	No action required. This requirement is satisfied.		
#24	Section 38(1)	OBLIGATION	NOT ADDRESSED
Rule:	A data controller must have a lawful basis for every instance of personal data processing.		
Match:	DATA STORAGE: All data is stored on servers in the United States.		
Action:	Ensure every data processing activity has a documented lawful basis as required by the NDPA 2023.		
#25	Section 39(1)	OBLIGATION	NON-COMPLIANT
Rule:	A data controller shall allow data subjects to withdraw their consent at any time and must stop processing their data upon withdrawal.		
Match:	Users cannot withdraw consent once given.		
Action:	Implement a clear consent mechanism such as a checkbox or popup that explicitly asks users for permission before collecting or processing their personal data.		

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